

Tamil Nadu Jute Goods Control Act, 1949

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State of Tamilnadu- Act

Tamil Nadu Jute Goods Control Act, 1949

TAMILNADU

India

Tamil Nadu Jute Goods Control Act, 1949

Act 28 of 1949

Published on 10 December 1949

Commenced on 10 December 1949

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Tamil Nadu Jute Goods Control Act, 1949

(Tamil Nadu Act

28 of 1949

)

Received the assent of the Governor-General on the 10th December 1949 and first published in the Fort St. George Gazette Extraordinary, dated the 14th December 1949.

An Act to provide for the regulation of the production, supply and distribution of jute goods in the [State of Tamil Nadu]

[Substituted for 'Province of Madras' by paragraph 3(2) Tamil Nadu Adaptation of Laws Order, 1970.]

.

Whereas it is necessary to provide for the regulation of the production, supply and distribution of jute goods in the [State of Tamil Nadu]

[Substituted for 'State of Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

; It is hereby enacted as follows:-

1.

Short title, extent and commencement.

(1)

This Act may be called the [Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Jute Goods Control Act, 1949.

(2)

It extends to the whole of the [State of Tamil Nadu]

[Substituted for 'State of Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

.

(3)

It shall come into force at once.

2.

Definitions.

- In this Act, unless there is anything repugnant in the subject or context,-

(a)

"Controller" means the Jute Controller appointed by the [State]

[Substituted for the word 'Provincial' by the Adaptation of Laws Order, 1950.]

Government under section 3;

(b)

"jute goods" includes all jute manufactures.

3.

Appointment of Controller.

- The [State]

[Substituted for the word 'Provincial' by the Adaptation of Laws Order, 1950.]

Government may, by notification in the [Fort St. George Gazette]

[Now the Tamil Nadu Government Gazette.]

, appoint any person to be the Jute Controller for the [State]

[Substituted for the word 'Province' by the Adaptation of Laws Order, 1950.]

.

4.

Powers of Controller to control production, supply and distribution of jute goods.

(1)

Subject to the control of the [State]

[Substituted for the word 'Provincial' by the Adaptation of Laws Order, 1950.]

Government, the Controller, so far as it appears to him to be necessary or expedient for regulating, maintaining or increasing the production, supply or distribution of jute goods, may, by order in writing,-

(a)

require any person holding a stock of jute goods to sell the whole or a specified part thereof at such prices and to such person (including the Central or [State]

[Substituted for the word 'Provincial' by the Adaptation of Laws Order, 1950.]

Government, or in such circumstances as may be specified in the order;

(b)

require any person engaged in the production of jute goods to comply with such directions as may be specified in the order as to the type, quality or quantity of the jute goods to be produced or delivered by him, from time to time.

(2)

Any person to whom an order is issued under sub-section (1) shall comply with such order, notwithstanding anything inconsistent therewith contained in any contract or other instrument to which he is a party.

5.

Penalties.

- If any person contravenes any order issued to him by the Controller under section 4, he shall be punishable with imprisonment for a term which may extend to three years or with fine or with both.

6.

Offences by corporations.

- If the person contravening an order issued by the Controller under section 4 is a company or other body corporate, every director, manager, secretary or other officer or agent thereof shall, unless he proves that the contravention took place without his knowledge or that he exercised all due diligence to prevent such contravention, be deemed to be guilty of such contravention.

7.

Cognizance of offences.

- No Court shall take cognizance of any offence punishable under this Act except on a report in writing of the facts constituting such offence made by the Controller.

8.

Protection of action taken under the Act.

(1)

No suit, prosecution or other legal proceeding shall lie against any person (including the Controller) for anything which is in good faith done or intended to be done in pursuance of any order issued under section 4.

(2)

No suit or other legal proceeding shall lie against the [State]

[Substituted for the word 'Provincial' by the Adaptation of Laws Order, 1950.]

Government, the Controller or any other person, in respect of any damage caused or likely to be caused by anything which is in good faith done or intended to be done in pursuance of any order issued under section 4.

9.

Repeal and saving.

(1)

The Madras Jute Goods Control Ordinance, 1949 (Madras Ordinance X of 1949) is hereby repealed.

(2)

Notwithstanding such repeal, any notifications or orders issued, action taken, or thing done in the exercise of any power conferred by or under the said Ordinance shall be deemed to have been issued, taken or done in the exercise of the powers conferred by or under this Act as if this Act had come into force on the 5th day of November 1949.

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